

IN THE SENATE

SENATE JOINT RESOLUTION NO. 102

BY STATE AFFAIRS COMMITTEE

A JOINT RESOLUTION

PROPOSING AN AMENDMENT TO SECTION 8, ARTICLE IX OF THE CONSTITUTION OF THE STATE OF IDAHO, RELATING TO STATE TRUST LANDS; STATING THE QUESTION TO BE SUBMITTED TO THE ELECTORATE; DIRECTING THE LEGISLATIVE COUNCIL TO PREPARE THE STATEMENTS REQUIRED BY LAW; AND DIRECTING THE SECRETARY OF STATE TO PUBLISH THE AMENDMENT AND ARGUMENTS AS REQUIRED BY LAW.

Be It Resolved by the Legislature of the State of Idaho:

SECTION 1. That Section 8, Article IX of the Constitution of the State of Idaho be amended to read as follows:

Section 8. LOCATION AND DISPOSITION OF PUBLIC LANDS. (1) It shall be the duty of the state board of land commissioners to provide for the location, protection, sale or rental of all the lands heretofore, ~~or which may hereafter be~~ granted to or acquired by the state by or from the general government, under such regulations as may be prescribed by law, and in such manner as will secure the maximum long term financial return to the institution to which ~~granted or to the state if not specifically granted~~; provided, that no ~~state~~ such lands shall be sold for less than the appraised price. No law shall ever be passed by the legislature granting any privileges to persons who may have settled upon any ~~such public granted or acquired~~ lands, subsequent to the survey thereof by the general government, by which the amount to be derived by the sale, or other disposition of such lands, shall be diminished, directly or indirectly. The legislature shall, at the earliest practicable period, provide by law that the general grants of land made by congress to the state upon statehood shall be judiciously located and carefully preserved and held in trust, subject to disposal at public auction for the use and benefit of the respective object for which said grants of land were made, and the legislature shall provide for the sale of ~~said~~ such lands from time to time and for the sale of timber on all state lands and for the faithful application of the proceeds thereof in accordance with the terms of said grants; provided, that not to exceed one hundred sections of state lands shall be sold in any one year, and to be sold in subdivisions of not to exceed three hundred and twenty acres of land to any one individual, company or corporation. The legislature shall have power to authorize the state board of land commissioners to exchange granted or acquired lands of the state on an equal value basis for other lands under agreement with the United States, local units of government, corporations, companies, individuals, or combinations thereof.

(2) Excluding lands granted pursuant to subsection (1) of this section, lands acquired by the exchanging of lands granted pursuant

to subsection (1) of this section, and lands purchased with moneys derived from the sale of lands granted pursuant to subsection (1) of this section, all other lands granted to or acquired by the state by or from the general government shall be held in a separate trust as public lands of the state of Idaho. The trust shall remain inviolable and intact for this and future generations. Such lands shall not be sold. Such lands may be exchanged for other lands with two-thirds approval of the legislature. The state board of land commissioners may lease such lands under such regulations as may be prescribed by law. The state board of land commissioners shall manage such lands by employing best management practices to achieve a harmonious and coordinated management of the various resources, each with the other, that avoids permanent impairment to the land, ensures the development and utilization of the land and its resources occurs in a manner that conserves existing and future uses of the land, preserves valid existing rights, and is in accordance with state law. The state board of land commissioners shall coordinate management with agencies of the state to promote public recreation, scenic values, watershed quality, and wildlife habitat and to further effectuate the purposes of this trust. Revenue derived from such lands and such other moneys that may be provided by legislative appropriation shall be placed in a permanent designated fund, which is hereby created in the state treasury, that shall be known as the public lands trust fund, the proceeds of which shall be annually appropriated by the legislature first to support operating and maintaining such lands and then: to compensate counties for lands within the counties' boundaries that are held in the public lands trust; to improve and increase public use and access; and to support primary and secondary public educational facilities.

SECTION 2. The question to be submitted to the electors of the State of Idaho at the next general election shall be as follows:

"Shall Section 8, Article IX of the Constitution of the State of Idaho be amended to provide that certain lands granted or acquired from the federal government shall never be sold and shall be placed in a trust to be managed for the benefit of the people of Idaho?"

SECTION 3. The Legislative Council is directed to prepare the statements required by Section 67-453, Idaho Code, and file the same.

SECTION 4. The Secretary of State is hereby directed to publish this proposed constitutional amendment and arguments as required by law.